

CHAPTER 54

An Act to amend the Rivers (Prevention of Pollution) Act, 1951, so as to give to river boards powers to deal with new outlets and new discharges of trade or sewage effluent into tidal waters or parts of the sea.

[29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The provisions of subsections (1) to (15) of section seven of the Rivers (Prevention of Pollution) Act, 1951 (which relate to the control by river boards of the bringing into use of new or altered outlets for the discharge of trade or sewage effluent to a stream and of the making of new discharges of trade or sewage effluent to a stream) shall apply to any tidal waters or parts of the sea within the seaward limits specified in the Schedule to this Act (in this section referred to as “controlled waters”) as they apply to a stream.

Extension of
14 & 15 Geo. 6.
c. 64. s. 7
to tidal
waters.

(2) For the purposes of the application of the provisions aforesaid—

(a) by virtue of the foregoing subsection, to any controlled waters; or

(b) by virtue of any order made, or having effect as if made, under section six of the said Act of 1951, to any other tidal waters or parts of the sea,

any reference in those provisions to the river board shall be construed as a reference to the river board for the river board area which includes the land or premises from which the discharge by means of the new or altered outlet or, as the case may be, the new discharge is being or is proposed to be made.

(3) In performing any functions under subsection (1), (2) or (5) of the said section seven in relation to controlled waters, river boards shall have special regard to the factors arising from the tidal nature of the waters and, in particular, to additional dilution due to dispersal of the effluent by tidal action, and the varying direction of flow and salinity and any other special properties of those waters.

(4) Paragraph (a) of subsection (8) of the said section seven (which defines the expression “new or altered outlet” by reference to the date of the coming into force of that section) shall

have effect in relation to any controlled waters (other than waters to which the said section seven applied immediately before the coming into force of this Act by virtue of an order made, or having effect as if made, under the said section six) as if for any reference to the date of the coming into force of the said section seven there were substituted a reference to the date of the coming into force of this Act.

(5) Section fifteen of the River Boards Act, 1948 (which relates to the taking by a river board of samples of effluents passing into waters in their area) shall apply in relation to any controlled waters adjoining a river board area as if those waters were included in that area, whether or not those waters also adjoin any other such area.

(6) Without prejudice to the foregoing provisions of this section—

- (a) subsection (16) of the said section seven (which relates to the bringing into use of new or altered outlets for the discharge of trade or sewage effluent to any tidal waters or part of the sea included in a river board area for the purpose of the river board's functions relating to fisheries and to the making of new discharges of trade or sewage effluent to any such waters or part of the sea) shall not apply in relation to controlled waters ;
- (b) subsection (17) of the said section seven (which empowers the Minister of Housing and Local Government by order under the said section six to direct that the provisions of subsections (1) to (15) of the said section seven shall apply to certain tidal waters or parts of the sea) shall not apply to any controlled waters ; and any such order in force immediately before the coming into force of this Act shall, so far as it directs that the said provisions shall apply to any controlled waters, cease to have effect ;
- (c) in sub-paragraph (1) of paragraph 2 of the Second Schedule to the said Act of 1951 (which provides that a river board area shall, for the purposes of the functions of the river board relating to river pollution, include any tidal waters or parts of the sea adjoining the coast of the river board area to which any of the provisions of sections two to five or section seven of that Act for the time being apply by virtue of an order under section six of that Act) the words " or section seven " are hereby repealed ;
- (d) paragraph 9 of the said Second Schedule (which provides that any order under section twenty of the Rivers

Pollution Prevention Act, 1876, or under section fifty- 39 & 40 Vict.
 five of the Salmon and Freshwater Fisheries Act, 1923, c. 75.
 in force at the coming into force of the said Act of 13 & 14 Geo. 5.
 1951 shall have effect for the purposes of the said Act c. 16.
 of 1951 as if it were an order under the said section
 six and extended sections two to five and section seven
 (except the two last subsections) of the said Act of 1951
 to the waters to which the order relates) shall have
 effect in relation to any controlled waters as if the
 words "and section seven (except the two last sub-
 sections)" were omitted.

(7) Any expression used in this section which is also used in the said Act of 1951 shall have the same meaning for the purposes of this section as it has for the purposes of that Act; and any reference in this section to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment.

2.—(1) This Act may be cited as the Clean Rivers (*Estuaries and Tidal Waters*) Act, 1960. Short title,
extent and
commence-
ment.

(2) This Act and the Rivers (*Prevention of Pollution*) Act, 1951, may be cited together as the Rivers (*Prevention of Pollution*) Acts, 1951 and 1960.

(3) This Act shall not extend to Scotland or to Northern Ireland.

(4) This Act shall come into force at the expiration of two months beginning with the date of its passing.

SCHEDULE

Section 1.

SEAWARD LIMITS OF CONTROLLED WATERS

In this Schedule, a group of two letters and eight figures identifying or associated with any point represents the map co-ordinates of that point estimated to the nearest ten metres on the grid of the national reference system used by the Ordnance Survey on its maps and plans.

1. A line drawn from the pier lighthouse at Berwick upon Tweed (NU01095238) to the tower of St. John's Church, Tweedmouth (NU00565156).

2. Lines drawn across the north-western and south-eastern ends respectively of the channel between Holy Island and the coast of Northumberland from Snook Point on Holy Island to a point on the mainland at NU07444439 and from Castle Point on Holy Island to Guile Point on the mainland.

3. A line drawn across Alnmouth Bay from NU24921043 to NU24901003.

4. A line drawn between the seaward ends of the north pier and south jetty at Amble.

5. The mouth of the river Lyne.

6. The mouth of the river Wansbeck.

7. A line drawn between the seaward ends of the piers at the entrance to Blyth harbour.

8. A line drawn between the seaward ends of the piers at the entrance to the river Tyne.

9. A line drawn between the seaward ends of the piers at the outer entrance to Sunderland harbour.

10. A line drawn between the seaward ends of the North Gare and South Gare breakwaters at Tees Mouth.

11. A line drawn between the seaward ends of the piers at the outer entrance to Whitby harbour.

12. The mouth of the Scalby Beck or Sea Cut.

13. A line drawn from the tip of Spurn Head to Donna Nook at TF43029971.

14. The mouth of Saltfleet Haven.

15. A line drawn across the Wash from Gibraltar Point to Gore Point.

16. Lines drawn—

(a) from the clubhouse near Brancaster at TF77124516 to the westernmost tip of Scolt Head Island ; and

(b) from the most easterly point of the said island to Gun Hill at TF84804569.

17. A line drawn from High Cape at TF90724607 to the northernmost point of Blakeney Point.

18. A line drawn between the seaward ends of the piers at the entrance to Great Yarmouth harbour.

19. A line drawn between the seaward ends of the north and south piers at Lowestoft.

20. A line drawn between the seaward ends of the piers at the outer entrance to Southwold harbour.

21. The mouth of the river Ore.

22. A line drawn across the entrance to the River Deben from TM33143754 to TM32773648.

23. A line drawn from the beacon at Landguard Point to the Naze at TM26782450.

24. A line drawn from Colne Point at TM09991231 to Sales Point at TM02920895.

25. Lines drawn—

(a) from a point north of the river Crouch at TR03319744 to Foulness Point at TR04559508 ; and

- (b) from Havengore Head at TQ98378828 to Haven Point at TQ97748775.

26. Lines drawn—

- (a) from the northern end of the sea-wall on the Isle of Grain at TQ89027701 to Barton's Point on the Isle of Sheppey at TQ93977491 ; and
(b) from Warden Point on the Isle of Sheppey at TR02037256 to Long Rock near Whitstable at TR13676784.

27. A line drawn from the West Cliff Bandstand, Ramsgate, at TR37126415 to Shingle End at TR35066062.

28. A line drawn across the entrance to the river Rother between the beacons at TQ94951822 and TQ94881818.

29. A line drawn across the entrance to the river Cuckmere from Cliff End at TV52159747 to the old coastguard station at TV51379763.

30. A line drawn between the seaward ends of the break-water and the east pier at the outer entrance to Newhaven harbour.

31. A line drawn between the seaward ends of the piers at the entrance to Shoreham harbour.

32. A line drawn between the seaward ends of the jetties at Littlehampton.

33. A line drawn between the ends of the spits at the entrance to Pagham harbour.

34. A line drawn across the entrance to Chichester harbour from the Spit at SZ76489845 to Eastoke Point at SZ75029808.

35. Lines drawn—

- (a) from Eastoke Point at SZ75029808 to the landward end of the lifeboat house jetty at Bembridge, Isle of Wight ; and
(b) from the westernmost point of the Isle of Wight to the lighthouse at the seaward end of Hurst Castle Spit on the mainland at SZ31838987.

36. A line drawn from Highcliffe Castle at SZ20279318 to Hengistbury Head at SZ18079056.

37. A line drawn across the entrance to Poole harbour from the end of the ferry ramp at Sandbanks to the tip of South Haven Point.

38. A line drawn between the seaward ends of the piers at the entrance to Weymouth harbour.

39. Lines drawn across the North Ship Channel, East Ship Channel and South Ship Channel at Portland harbour between the ends of the breakwaters.

40. A line drawn between the seaward ends of the piers at the entrance to Bridport harbour.

41. The mouth of the river Axe (Devon).
42. The mouth of the river Otter.
43. A line drawn across the entrance to the river Exe from Orcombe Point at SY02067951 to the seaward end of the break-water at Langstone Rock.
44. A line drawn from the landward end of Teignmouth Pier to the Ness at SX94077196.
45. A line drawn across the entrance to the river Dart from Inner Froward Point at SX90204956 to Combe Point at SX88314865.
46. A line drawn across the entrance to Salcombe harbour from Gammon Head at SX76603550 to Bolt Head at SX72583595.
47. A line drawn across the entrance to the river Avon (Devon) from SX65054415 to Long Stone at SX66024320.
48. A line drawn across the entrance to the river Erme from Fernycombe Point at SX61414646 to SX60504681.
49. A line drawn across the entrance to the river Yealm from Mouthstone Point at SX52604753 to Season Point at SX52744787.
50. A line drawn across the entrance to Plymouth Sound from Renney Point at SX49254875 to Penlee Point at SX44304871.
51. The mouth of the river Seaton.
52. A line drawn across the entrance to the river Looe from SX25875321 to SX25755282.
53. A line drawn across the entrance to the river Fowey from SX12215093 to St. Catherine's Point at SX11885093.
54. A line drawn across the entrance to Carrick Roads from the tip of St. Anthony Head to the tip of Penance Point.
55. A line drawn across the entrance to the Helford river from Rosemullion Head at SW79742781 to Nare Point at SW80052515.
56. A line drawn across the entrance to the river Hayle from Carrack Gladden at SW53493886 to Black Cliff at SW55453886.
57. A line drawn across the entrance to the river Gannel from the tip of Pentire Point West to the tip of Pentire Point East.
58. A line drawn across the entrance to the river Camel from the tip of Stepper Point to Pentire Point at SW92318044.
59. A line drawn across the entrance to the river Strat from Compass Point at SS19900637 to Wrangle Point at SS20120726.
60. A line drawn across the entrance to the rivers Taw and Torridge from SS41432851 to SS43143836.
61. A line drawn from ST21434634 west of the mouth of the river Parrett to Howe Rock, thence to the tip of Sand Point north of Weston-super-Mare, and thence to Ladye Point near Clevedon at ST40857297.
62. A line drawn across the Severn Estuary from the Black Nore lighthouse at Portishead in Somerset to the tip of Lavernock Point in Glamorgan.

63. The mouth of the river Thaw.
64. A line drawn across the entrance to the river Ogmore from SS86077562 to SS86007603.
65. A line drawn from Sker Point at SS78697973 to the lighthouse on Mumbles Head.
66. A line drawn across the eastern end of Carmarthen Bay from Minor Point at SS40939316 to Ginst Point.
67. A line drawn across the entrance to Milford Haven from Castles Bay at SM84380177 to St. Ann's Head at SM80880281.
68. A line drawn across the entrance to Solfach harbour from SM80162355 to SM79992365.
69. A line drawn across the entrance to the river Gwaun from Saddle Point at SM95793775 to Castle Point at SM96143785.
70. A line drawn across the entrance to the river Nefern from Cat Rock at SN04123997 to SN05374078.
71. A line drawn across the entrance to the river Teifi from Cemaes Head at SN13175013 to SN16145123.
72. The mouth of the river Aeron.
73. A line drawn from the seaward end of the pier at Aberystwyth at SN57798084 to SN57838162.
74. A line drawn across the entrance to the river Dovey from SN60399400 to SN59559622.
75. The mouth of the river Dysynni.
76. A line drawn across the entrance to the river Mawddach from SH61011427 to SH60791600.
77. The mouth of the river Artro.
78. A line drawn across the entrance to the river Glaslyn from SH56793200 to SH52083738.
79. The mouth of the river Dwyfor.
80. A line drawn from the landward end of the jetty at the entrance of Pwllheli harbour at SH38933465 to SH38413500.
81. Lines drawn across the south-western and north-eastern ends respectively of the Menai Strait from SH43036000 to SH42006209 and from SH70077624 to the lighthouse cottages at SH64128122.
82. A line drawn across the entrance to the river Cefni from the lighthouse on Llanddwyn Island to the tip of Pen-y-parc.
83. Lines drawn across the southern and northern ends respectively of the channel between Holy Island and the island of Anglesey from SH29577509 to SH30007517 and from SH27048189 to SH29348222.
84. A line drawn across the entrance to the river Conway from Penmaen-bach Point at SH74677856 to Trwynyngogarth on Great Ormes Head at SH75098339.
85. A line drawn across the entrance to the river Clwyd from SH99458102 to SJ00228127.

86. A line drawn across the entrance to the river Dee from the disused lighthouse at Point of Aire to Hilbre Point at SJ20318846.

87. A line drawn across the entrance to the river Mersey from the landward end of the pier at New Brighton to SJ32259699.

88. A line drawn across the entrance to the river Alt from SD29570180 to SD29000386.

89. A line drawn from the seaward side of Marine Drive where it is crossed by Southport Pier at SD33021787 to the landward end of St. Anne's pier at Lytham St. Annes.

90. Lines drawn—

(a) from Rossall Point at SD31094757 to Hilpsford Point on the Isle of Walney at SD20866200; and

(b) from Shope Tree Scar on the Isle of Walney at SD16687252 to Haverigg Point at SD14007790.

91. A line drawn across the entrance to the river Esk from SD07449400 to Drigg Point at SD07229511.

92. A line drawn across the entrance to the rivers Calder and Ehen from NY02320259 to NY01910347.

93. A line drawn between the seaward ends of the pier and jetty at the outer entrance to Workington harbour.

94. A line drawn between the seaward ends of the piers at the outer entrance to Maryport harbour.

95. A line drawn across the Solway Firth from the landward end of the pier at Silloth in Cumberland to Southernness Point in Kirkcudbrightshire.

CHAPTER 55

Nigeria Independence Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Provision for the fully responsible status of Nigeria.
2. Consequential modifications of British Nationality Acts.
3. Consequential modification of other enactments.
4. Modification of Overseas Service Act, 1958.
5. Short title and interpretation.

SCHEDULES:

First Schedule.—Legislative powers in Nigeria.

Second Schedule.—Amendments not affecting law of Nigeria.

An Act to make provision for, and in connection with, the attainment by Nigeria of fully responsible status within the Commonwealth. [29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—